CITY OF OPA-LOCKA
"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
October 14, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, October 14, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda to include the following resolutions under agenda item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN RELOCATING TENENTS FROM 1900 ALI-BABA AVENUE IN ACCORDANCE WITH SECTION 7-73 OF THE OPA-LOCKA CODE OF ORDINANCES; FURTHER AUTHORIZING THE CITY MANAGER TO EXPEND UP TO TWENTY-SEVEN

THOUSAND DOLLARS ($27,000.00) TO SETTLE PAYMENTS ASSOCIATED WITH THE RELOCATION, PAYABLE FROM ACCOUNT NO. 25-525390. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QOUTE FROM BURCORP LLC AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF THIRTY-SIX THOUSAND THREE HUNDRED FORTY-FIVE DOLLARS AND SEVENTY-SIX CENTS ($36,345.76) FOR EMERGENCY REPAIRS TO THE RECREATION BUILDING AND FACILITIES AT INGRAM PARK, PAYABLE FROM ACCOUNT NO. 72-572461. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Commissioner Johnson pulled agenda items 15-3, 15-4, 15-7 and Commissioner Tydus pulled agenda item 15-5 from the Consent Agenda. The items pulled as reflected above would be discussed separately under agenda item # 11 (Action Items).

It was moved by Commissioner Johnson, seconded Commissioner Holmes to approve the agenda, Consent Agenda and Pull List.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes

Commissioner Tydus	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Special Commission Meeting – September 21, 2009
Second Budget Hearing – September 21, 2009
Regular Commission Meeting – September 23, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of September 21, 2009, Second Budget Hearing of September 21, 2009 and Regular Commission Meeting of September 23, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant County to District 1 County Commissioner Barbara Jordan came forward and provided a brief update on the HUD homes and tot lot in the Magnolia North area. Additionally, he reported on the Miami-Dade County/Opa-locka beautification and rehabilitation programs of which he would again bring the project directors before the Commission for a presentation.

He announced that Commissioner Barbara Jordan was sponsoring the Flu Shot at the North Dade Regional Library on Thursday, October 22, 2009 free to children ages 1-18 and seniors 65 and older.

Commissioner Johnson commended Commissioner Jordan for an excellent Hispanic Heritage Celebration.

Mayor Kelley expressed his concern regarding the length of time it has taken for the Tot Lot property.

10. PUBLIC PRESENTATION:

1. **Bill Sussman**
   Alzheimer's Association of South Florida

re: Memory Walk and City Competition

Bill Sussman, volunteer of the Alzheimer's Association of South Florida serving on the Board of Directors, of 10165 SW 71st Avenue, Miami, Florida, appeared before the City Commission and provided some brief facts and statistics relating to Alzheimer's in addition to the purpose of the Alzheimer's Association of South Florida. He encouraged participation at the Memory Walk on Saturday, November 14, 2009 in Coral Gables. In addition to the Memory Walk, they are sponsoring the Alzheimer's Memory Challenge of which Mayor Kelley would be receiving from the League of Cities an invitation to an announcement of the City Challenge Kick-Off. The city with the highest percentage of its population participating in the walk is going to receive a major trophy which would be suitable for display until the next walk and the next winner. He requested that the city spread the word about the City Challenge which would have national exposure.

2. **Alvin Burke**
re: Welfare of the City

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came forward and brought up an issue he discussed at the previous commission meeting in which he was disturbed that the citizen's money had been used to pay attorney fees for Commissioner Rose Tydus when she was doing business for Rose Tydus All Occasions Gift Baskets. He continued by saying that Commissioner Rose Tydus owes the citizens of the City of Opa-locka $3,500.00 and it is up to the Mayor/Commission to retrieve the citizens money because she was conducting personal business and not business for the City of Opa-locka.

Note: The following portion of the minutes is transcribed in verbatim format.

Commissioner Tydus: *At the last regular commission meeting Mr. Burke presented, as he's presenting tonight, half truths concerning an Ethics Commission complaint that was filed against me on May 14th, 2008. The city records will reflect that on July the 9th, 2008 during that particular commission meeting, I presented an unsolicited statement outlining the circumstances, the regrets, and the outcome of that particular matter of which I really don't feel that it's necessary for me reiterated all of that. Most of you were here, Mr. Burke I believe was here, if not, I'm sure he has checked the records or watched or viewed the television. But other than that fact, my actions were not found to be criminal in nature, they were dismissed as stated in the document dated May 12, 2009 and I quote "all administrative charges against Commissioner Tydus solely in her capacity as commissioner were dismissed by the Commission on Ethics". Did I sell gift baskets to Waste Management? Yes! Was it done with a criminal intent, illegal motive or gain? No! Was a lesson learned? Yes! And I really appreciate the Ethics Commission that that is the reason that it was established. They are the watch dogs for elected officials to let us know when we have erred. But I learned...more than anything I've learned that I have to be more attentive to details of my public responsibilities. Did Mr. Burke leave?*

Alvin Burke: *No, no, I'm right here.*

Commissioner Tydus: *Okay...and I also learned at all times to eliminate any appearance of conflict of influence. But once again, this is an old issue which Mr. Burke and others have brought before this Commission and as most people in this room have heard those statements before, this dais has heard these statements before and I had to ask myself Mr. Burke, why anyone would take special time and effort to discredit or attempt to defame another person...to hurt another person. But then it came to me, hurt people, hurt people and I just want to apologize to you and to whoever is a part of this with you for whoever has hurt you throughout the years. Because hurt people...hurt people...Now the issue of the city's payment of legal fees on my behalf of $3,500.00, according to the Charter legal fees are provided for elected officials not to exceed $5,000.00. My legal fees were $3,500.00, the document that I just made referenced to, also made reference to the fact that the complaint that was filed against me was within the provisions of the Charter providing for legal defense. But it's strange Mr. Burke that you failed to mention that the city received a bill on September of 2006 totaling $7,500.00 from an attorney to represent the City Clerk regarding an Ethics Commission complaint. The sealing according to the Charter is $5,000.00, now there was no resolution approving this payment and the City Manager at that time even indicated on the check that was issued or the check receipt that they were not in agreement with this payment and that it should be paid according to resolution. But there was also a note on that particular document that 3 commissioners verbally approved this. Now it would be interesting Mr. Burke on your witch hunt to find out who those 3 commissioners were because I was not invited to that particular party. Double standard! Why? I don't know! Then we have the case of Terence Pinder...$10,000.00...the city paid $10,000.00 in legal fees for Mr. Pinder. He was removed from office...I'm not sure but I don't want to bare false witness and that's why I say I'm not sure but I believe it was in 2006 and the city as recent as 2008 made a payment for legal fees that included services in 2008. Double standard...Why is that! Then we have the case of Gail Miller, $5,012.85 on August 25, 2008, the City Commission approved legal fees for an Ethics Commission complaint. Double standard...I don't understand it. $3,500.00 against $10,000.00, against $5,000.00, against $7,500.00...I just really don't know what to say other than we just need to be careful. And one of the...the...and this is a message to all of us...one of the greatest examples that I can give in being careful can be found in the Book of Esther, check it out, Hayman and Morticia. I suggest that we all read it. Thank you, Mr. Mayor.*

Commissioner Holmes: *Let me say this and maybe we can put this to rest...maybe we can put this to rest okay. On the case of Commissioner Tydus, when the bill was first presented to the manager for reimbursement I saw a copy of it for $5,000.00. I, listen to me very carefully citizens, I got in touch with the Attorney General in Tallahassee asking them to give me their legal opinion. The legal opinion came back stating no, according to the outcome of the Ethics Complaint, the city do not have to pay that money, but if the majority of the Commission wanted to then they could do it. Now it never came before the Commission for the $5,000.00, next thing I know it was reduced to $3,500.00 and it was paid. Now that's the natural born truth and that's the facts of this and I'm tired of this okay. Let's put this to rest. Now if I have to get another copy from the Attorney General, I would do that. I gave a copy...what I recall is I gave a copy to the Manager of the Attorney General's opinion and I thing I might have gave a copy to the City Attorney but*

if I didn't, I still have a copy in my office, if not, I will get back in touch with him. But let's put this to rest and move on to better things this commission meeting. I don't even want to discuss this. I just want to put that out there so we can put it to rest. Thank you, Mr. Mayor.

Commissioner Tydus: *Mr. Mayor may I please comment on that because I also did an investigation on that so called opinioned from the Attorney General's Office. First of all my name was not on it. The Attorney General's Office does not give legal opinions concerning any individual personal matter. They speak in general terms and that particular document that you are making reference to Commissioner Holmes at the bottom and I don't have it here with me but Mr. Burke...*

Commissioner Holmes: *You should have it, Commissioner.*

Commissioner Tydus: *Well you should have it, you're the one...*

Commissioner Holmes: *No, you're the one that brought it up.*

Commissioner Tydus: *And Mr. Burke...Mr. Burke should have a...*

Mayor Kelley: *Go ahead and finish your comment Commissioner...go ahead Commissioner.*

Commissioner Holmes: *It's not important.*

Mayor Kelley: *Commissioner Holmes, Commissioner Tydus has the floor. Go ahead Commissioner Tydus.*

Commissioner Holmes: *I understand...I understand.*

Mayor Kelley: *Go ahead Commissioner Tydus.*

Commissioner Tydus: *Once again it did not have my name on it, it was speaking in generalities and it ended and I'm not quoting word for word but the essence of...the conclusion of that document that it was a matter that was to be determined by the government entity and our Code and Charter address it.*

Mayor Kelley: *If there's any conflicting document, information that this Commission as a whole needs to take up legislative, bring it before us in some matter or form. I don't want to deal with this anymore because I don't want to deal with this whole discussion that is just going back and forth with information. If this Commission as a whole needs to vote on some legislation, bring it...whoever wants to bring it, bring it but I don't want to go back and forth on this discussion anymore. I let it go tonight because Commissioner Tydus said she wanted to have an opportunity to present her statement, I've done that so to my colleague and all of us I want to move on. The citizens are here for the meeting and*

I want to move forward...everyone has stated their case and the public, citizens will go from there but I want to move the agenda.

NOTE: *This concludes the verbatim portion of these minutes.*

10a. CITIZENS' FORUM:
(opportunity for discussion of any concerns – please limit to 3 minutes)

1. Jacquelyn (inaudible) of 1151 Peri Street, Opa-locka, Florida appeared before the City Commission and spoke about the importance of having unity amongst the elected officials which is counterproductive to the growth and movement of this city.

2. Coach Eddie Jones of 13815 NW 23rd Avenue, Opa-locka, Florida came forward and thanked the Commission for the sports activities as a part of the city's Parks & Recreation Department.

3. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida came forward and stated that as a citizen and taxpayer of Opa-locka, anytime he sees that his money is not being spent the way it should then he will speak out. The City Clerk is not an elected official and he is not trying to hurt anyone but as elected officials he expects them to do what they are suppose to do. He continued by reiterating that Commissioner Tydus owed the citizens of Opa-locka $3,500.00 because the city had no business paying for her attorney.

4. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida appeared before the City Commission and expressed his satisfaction with the lawn maintenance of city properties by the inmates. He encouraged the Commission to continue having the inmates perform part of the maintenance which could save the city money.

Mayor Kelley advised that the city does plan on keeping the prisoners to perform some of the maintenance because they are much cheaper.

Battalion Chief Danny Cardeso of Miami-Dade Fire Rescue came forward to address any questions/concerns the Commission may have relating to Miami-Dade Fire Rescue.

Mayor Kelley encouraged Miami-Dade Fire Rescue to keep up the good work.

11. ACTION ITEMS (items from consent agenda pull list):

15-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING A CITY COMMITTEE TO BE REFEREED TO AS THE "OPA-LOCKA COALITION FOR THE HOMELESS"; AUTHORIZING THE CITY MANAGER TO PARTNER WITH THE MIAMI-DADE COUNTY HOMELESS TRUST TO ADDRESS CRITICAL ISSUES FACING THE HOMELESS WITHIN THE CITY OF OPA-LOCKA. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked whether there is money involved with this resolution.

Vice Mayor Taylor advised that there was no money involved. This resolution creates a coalition of citizens or whomever the Commission wants to appoint to address the homeless.

Commissioner Johnson said she was totally in support of the resolution.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

15-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO WORK TOGETHER WITH MIAMI-DADE COUNTY TO ESTABLISH A REVISED SCHEDULE FOR THE MAINTENANCE AND CLEANING OF CANALS AND STORMWATER DRAINAGE SYSTEMS WITHIN THE CITY OF OPA-LOCKA. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson inquired about the difference between this resolution and the one already on the books for the maintenance and cleaning of the canals and stormwater drainage systems.

Vice Mayor Taylor explained that whatever is on the books now is not being enforced because the canals are not maintained on a regular basis and she would like to see this addressed. She had asked the City Manager to speak to whoever is in charge at the county to see about getting the maintenance of the canals on a regular basis.

Commissioner Johnson was in agreement with the resolution but stated that staff had to do their job and must be held accountable because there's an existing resolution and she didn't see the need for another resolution. All of the elected officials on the dais at one period or another talked about the cleaning of the canals. When the former City Manager was in office, Miami-Dade County gave a presentation and there was a maintenance

schedule for cleaning the canals. In addition to that, there was another resolution to purchase a boat for this same purpose.

In the budget, Manager Finnie stated that he would look at canal cleaning equipment; it wasn't in a resolution but it was in the budget.

Commissioner Johnson stated that the canal cleaning equipment was included in last year's budget as well. If this resolution is going to make it happen then she supports it; however, there is still legislation on the books to that effect and she would like to know why it is not being adhered to.

Upon being re-elected into office, Vice Mayor Taylor said she came back and the canals were dirty and she will stay behind this to make sure that the maintenance takes place. She thanked the Commission for their report and although there's a double resolution, this is going to get done.

Mayor Kelley stated that the canal schedule was just done and passed in the last budget and the City Manager is going to tell the Commission the city doesn't have a schedule although he'd been on the City Manager for over two months about adding more canal cleaning opportunities; not just the debris because part of what the Urban Rangers were going to do was clean the debris and the paper due to the fact that Miami-Dade County will come in and dredge for the fungus but they don't pick up the paper and litter. The Urban Rangers were suppose to make that a part of their everyday schedule and the City Manager is now saying that the city doesn't have a schedule with Miami-Dade County for stormwater management.

Manager Finnie said that the city does have a schedule and the canals are cleaned quarterly.

In the discussion with the City Manager two months ago, Mayor Kelley said his concern at that time was getting the canals cleaned and the City Manager replied that the city had to wait on Miami-Dade County's budget process before falling in the loop. And that's the reason why the canals didn't get cleaned in July or August. He said he talked about this at the League of Cities because citizens were complaining about the canals and the City Manager indicated at that time he would have Mr. Manning call the county. After receiving the follow up, the City Manager stated to him then that Miami-Dade County could not start before September and his response was to either come back to the Commission with a temporary company to clean the canals because it was filthy then. The City Manager's recommendation was to have staff to pick up the debris and that the county would make Opa-locka the first on the priority list when they start on September 1. On September 1, 2009, he asked the City Manager for an update and the City Manager indicated through Mr. Manning at the time that the county was not able to get to the canals until mid September. He asked the City Manager if those were his statements.

Manager Finnie replied, yes.

Mayor Kelley said the City Manager is now coming back stating, according to the resolution, that the Commission needs to create to clean the canal segments. He asked, was the City Manager saying that this was not already in place and the city doesn't have an agreement?

Manager Finnie explained that the city has an existing agreement to clean the canals quarterly. When he indicated Miami-Dade County would be here in September, they have come here in September and the Urban Rangers did clean along side the canals, but the city is strapped until they get the lawn issue resolved. The Mayor had been quite articulate in their conversations about the city being front and center making sure those people in the county do what they should do in terms of bringing services to Opa-locka; however, he was at a crossroad because the city does have a schedule and he's been working with the county for them to pay more attention.

Although Mayor Kelley didn't want to be adversarial in terms of this resolution, he said that the city already has this resolution. He stated to the City Manager a while back that if they needed to come back to this Commission to include additional cleaning opportunities in addition to the four which are done quarterly then bring it back.

Manager Finnie was of the opinion that what this conversation is about at the end of the day is putting more pressure on the county to maintain its schedule to clean the City of Opa-locka.

Mayor Kelley stated that the entire Commission wants to see the canals clean.

Commissioner Holmes reminded the Commission that the city has a boat and a truck with a claw which are housed at the Public Works Department for the purpose of cleaning the canals. He stated that he would not support this resolution because there's wasn't a need for it.

Vice Mayor Taylor stated that if the resolution is going to put grit and teeth behind what the city already has in place then she asked for the Commission to support it so she can work with the City Manager to get the canals cleaned. She said they would do whatever necessary to make sure the city gets a regular routine cleaning of the canals in the City of Opa-locka like other cities.

Because of the existing agreement with Miami-Dade County for canal cleaning as stated by the City Manager, Commissioner Tydus stated that the 1st whereas in the resolution is redundant because it authorizes the City Manager to enter into an agreement that the city already executed. This entire resolution is based on that two year agreement that the city already has.

Vice Mayor Taylor suggested that if the first resolution/agreement wasn't working then they should do it again because obviously it's not working because the canals are dirty.

Commissioner Tydus read a section of the resolution as follows: "the agreement further provides for an adjustment of the tasks and levels of service for canal maintenance". In speaking about adjustment of tasks, it is talking about enhancing what's already in place. In her opinion, she didn't see where this resolution was taking away from the original resolution but enhancing it.

Commissioner Johnson disagreed with having a double resolution because it appeared as if the Vice Mayor with the City Manager felt wholehearted that this will enhance what the city already. The resolution is already in place and it appears as if the City Manager can't get the job done because it doesn't take a duplicate resolution to get the canals cleaned.

She continued by making reference to the Educational Compact which was passed by the Commission, but she is still meeting with individuals and anything she can do as an elected official to enhance it, she doesn't need anyone to come back and piggyback on anything. The City Manager must make sure he does his job and make sure his staff does their job which the taxpayers pay for. Furthermore, she stated that she would not support this resolution.

Mayor Kelley agreed that the Commission wants the canals cleaned but he doesn't think this resolution is needed because they were very clear even when they passed the legislation that stated to the City Manager that if the quarterly maintenance wasn't sufficient then he should come back to the Commission to revise and enhance it. This resolution will be associated with a cost but there's no cost attached to the resolution and that should have been part of the negotiation discussion the City Manager was going to have with the county.

Manager Finnie reassured the Commission that there hasn't been any negligence on the city's part because they have cleaned the canals and will continue to clean the canals; but if anyone wants to recommend through a resolution an enhancement and it is in the best interest of the city then it is the intent of his office to stand down and move forward with the recommendation from this board. After he sits down with the county, he would come back to the Commission with detailed modifications to the contract, if required.

In light of the fact that there is an existing agreement, Vice Mayor Taylor said that something was wrong with the agreement because the canals are not being cleaned and that is her reason for sponsoring this resolution. There seems to be a breakdown in communication between the city and the county or the city doesn't have everything together to where the canals are cleaned on a regular basis. As far as she is concerned, the city doesn't have the where for alls to clean the canals.

She withdrew her seconded on the above resolution to work with the City Manager and City Attorney on the existing resolution and agreement and if the existing agreement needs revising/updating then she would bring it back to the Commission. She asked if the Commission could agree on that.

Mayor Kelley advised that the city already has an agreement and the City Manager needs to go to the county and find out how much more it would cost the city for additional cleaning. Additionally, he needs to enhance the Urban Rangers and support staff responsible for the debris along the side of the canals.

Vice Mayor Taylor withdrew her seconded, Commissioner Johnson withdrew her motion on the above resolution.

15-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TERMINATING THE APPOINTMENT OF THE CITY ATTORNEY, BURNADETTE NORRIS-WEEKS, P.A. Sponsored by T.H.

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Tydus, seconded by Commissioner Holmes to pass the above resolution.

Because the resolution was very vague, Commissioner Tydus suggested that the sponsor of the resolution elaborate on the section which read "due to losing confidence".

Commissioner Holmes explained that he would not go into details in terms of everything that had occurred in the past year, but he continued by pointing out two incidents dealing with the Flea Market and the emergency ordinance for the sewer rates.

Note: This portion of the minutes is transcribed in verbatim format.

Commissioner Tydus: *Yes, well first of all, again...the City Attorney is not on trial as far as the Flea Market lawsuit is concerned. As I brought to the Commission's attention at the last regular commission meeting we're talking about two separate lawsuits...two separate lawsuits. Yes, perhaps in fact Mr. Geller is representing the initial lawsuit. The resolution that I brought before the Commission and the Commission, not the attorney, I sponsored the resolution, the Commission passed the resolution to authorize the City Attorney, she did not of her own volition, it was passed by the consensus of the Commission, for her to initiate the lawsuit of which has absolutely nothing to do with the lawsuit that you made reference that Mr. Geller is involved with, that's number 1. Number 2, I just don't understand...I don't understand how an individual and a firm can be respected and can be known as being professional, not only as a firm but an individual, be respected not only in Dade County as a professional but in Broward County as well with an arm's length of recognitions for that professionalism for civic contributions but it's beyond me. We had a former City Attorney, unfortunately most of the times and embarrassingly you know he was a functioning alcoholic, we all know that.*

(outburst from the audience in background)

Commissioner Holmes: *Point of order, Mr. Mayor.*

Commissioner Tydus: *Well, it's...it's a...it's a fact. It's a fact! It's a fact!*

Commissioner Holmes: *Point of order, Mr. Mayor.*

Commissioner Tydus: *It's a fact and we received half of the service that we should have received.*

Mayor Kelley: *(inaudible)...point of order.*

Attorney Weeks: *I believe the disruption has left.*

Mayor Kelley: *No I'm saying there's a point of order. Can I rule on the point of order?*

Attorney Weeks: *Yes, sir.*

Mayor Kelley: *Point of order, Commissioner Holmes.*

Commissioner Holmes: *This doesn't call for bringing up the former City Attorney and calling him an alcoholic and stuff, this doesn't call for that. I expect certain of us to say things on behalf of the City Attorney especially when the City Attorney supports the paying of the $3,500.00 for her attorney.*

Mayor Kelley: *Rule on your point of order, not comment.*

Commissioner Holmes: *This is all in the point of order. This is why...this is why Commissioner Tydus is so up on this because she knows that the City Attorney is in her corner. Thank you!*

Mayor Kelley: *Alright...okay...I heard your point of order, Commissioner. I heard your point of order. Commissioner Tydus, go ahead.*

Commissioner Tydus: *Yes, we all know we received half of the service that we should have received from this particular individual. Me included, it's amazing to me that no one has ever said termination resolution and let me be perfectly clear on this...uh...the former City Attorney, I was very close friends with his wife, there was no secret, very close and I spent more time than anyone here on this dais in the hospital with him and visiting his home. So this is not in an effort to defame or bear any false witness, we all knew and we enabled him instead of helping him and that's wrong and I take as much responsibility for it as I hope you will as well. But in and through all of that, I never heard termination resolution. He was a brilliant City Attorney when he was with this City of Miami but he wasn't with the City of Opa-locka, his vice would not allow him to. I know that, you know that, his wife knows that, his friends know that and when we're talking...*

Commissioner Holmes: *Point of order.*

Mayor Kelley: *I ruled on the point of order. The point of order would have been (inaudible).*

Commissioner Holmes: *(inaudible)...not to talk about the former City Attorney.*

Vice Mayor Taylor: *Mr. Mayor, excuse me Commissioner Tydus. Now listen, you said to me we would allow everyone to talk. Is that correct? Now you can't call "point of order" because you don't like what somebody is saying because we don't always like what somebody is saying and no one calls "point of order" on you. Let Commissioner Tydus finish her statement, when she's done we would follow Robert Rule's of Order.*

Mayor Kelley: *Vice Mayor Taylor?*

Vice Mayor Taylor: *Yes, sir.*

Mayor Kelley: *No, no, you don't have to do that because I ruled on the point of order but I want to allow her to speak.*

Vice Mayor Taylor: *Oh okay...then never mind.*

Commissioner Holmes: *Mr. Mayor.*

Mayor Kelley: *Finish your statement Commissioner, you have the floor.*

Commissioner Tydus: *I'm consistently hearing about full time in-house attorney...we have that. We've had that on several occasions. Full time in-house does not necessarily mean full time service. We were not receiving full time service with not only the former but formers and I know that there's no such word City Attorneys. We have the representation that we've never had before. We have a firm, a firm...the last firm that I know of that worked...that was contracted by the city was Weintraub, Weintraub, Seiden, Dudley and Press and each one of those attorneys were specialized in different areas. We have that same type of representation here and the office is covered every day of the week, one of those specialized attorneys is here. We had...and available to meet our needs. So I don't know what...I wish someone would define full time in-house, we had that but we didn't have full time service, we did not have full time service. So I'm not in support of...of...of this and I would like to give the City Attorney an opportunity to address these two issues. Perhaps there's something I don't know...to address these two issues or charges that have been placed upon you. Do I have the consensus of the Commission?*

Mayor Kelley: *I have discussion; if it's the will of the Commission then I will allow the attorney to do that. I'm going to finish discussion.*

Commissioner Tydus: *Alright, thank you, Mr. Mayor.*

Commissioner Taylor: *I agree with the Commissioner Tydus, I have not lost confidence in the City Attorney. She has been forthright and operating to the best of her legal ability. Now whether we obey it or not or whether we go by it or not, she has not lost my confidence.*

Commissioner Holmes: *I want the people on the dais, my colleagues...I want the citizens to know, anytime Commissioner Holmes feels like this meeting is going in a different direction than it is suppose to go in, I will call "point of order"...I will call "point of order". And when you do call point of order, it must be ruled on by the chair. I don't care what anybody say and you have the right to disagree with what Commissioner Holmes' is going, I don't have a problem with that. You have a right not to support this resolution. That's your right, I'm not upset with you because you say you not going to support or this and that, that's your right to do that. All Commissioner Holmes did was brought it and explained what's been going on in the past year and some of the things that have been going on and all these doggone emails every week and the Mayor and I stated no more emails and the next day I was getting emails left and right the following day. But be as it may, the resolution is on the agenda, the resolution is on the table for we to make a decision if the City Attorney want to comment on it, that's her legal right to do that. I do not have a problem with that...I don't have a problem with any body saying what they want to say, only thing I say when somebody is dead, let the person rest in peace. I don't know if I'm sentimental about that because my wife just passed but if the person is dead let them rest in peace no matter what you did for the person when they was living. I know what I've done and I'm not bringing all that up. Let him rest in peace, Mr. Mayor. Thank you, Mr. Mayor.*

Note: This concludes the verbatim portion of these minutes.

Attorney Weeks addressed the two issues Commissioner Holmes brought up as to the reason why he feels there's a lost of confidence on his part.

Commissioner Holmes stated that he would not get into a debate with anyone about this issue. Although he brought up two concerns, there are many more which he didn't want to get into at that time.

Mayor Kelley said he would not support the resolution because he had not lost total confidence, but he does have concerns regarding issues occurring in the legal side.

Commissioner Johnson expressed the importance of having the three appointed officials on the same page as a unified team and if she didn't see a change within the next 90 days then she would bring back a resolution.

Furthermore, she voiced her concerns relating to citizens being attacked because the citizens are allowed to say whatever they want but it doesn't mean the City Attorney has to justify everything. She stated that the City Attorney doesn't have her total support like before.

Although she strongly supported this resolution, based on the comments from the Commission she suggested that the sponsor defer the resolution for 90 days.

Taking into consideration where the discussion was leading and Commissioner Johnson's suggestion, Commissioner Holmes agreed to defer this resolution for a period of 90 days.

The motion and seconded were withdrawn and the above resolution was deferred for 90 days.

15-7: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF FIVE THOUSAND FOUR HUNDRED FIFTEEN DOLLARS AND THIRTY EIGHT CENTS ($5,415.38) TO FRANK'S COLLISION, INC. FOR THE REPAIR AND RESTORATION OF A CITY OWNED 2007 FORD F-150, PAYABLE FROM ACCOUNT NO. 49-541520. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson said she didn't see supporting documentation to reflect the vehicle and the corrective action taken, if any, because this is the third vehicle damaged. Additionally, she asked, if this was an accident, why not have the city's insurance carrier take care of it?

Although staff would come up to address Commissioner Johnson's concerns, Manager Finnie explained that this incident happened very early on in his tenure and there was a long, aggressive and detailed discussion about why this had happened. This was an accident and human error and he wanted to make a point that he would not tolerate it.

Fritz Armand, former Director of Public Works, came forward and stated that this incident happened during the beginning of his tenure at the Public Works Department. The insurance was not able to cover the repairs because the minimum amount for the insurance is $25,000.00.

Commissioner Johnson expressed her frustration with the resolution not having the supported documentation. She asked, what employee was involved in the accident?

Manager Finnie stated that the employee is in the building department and there's only one employee in that department authorized to drive a city vehicle.

Commissioner Johnson asked, is that employee still driving a city vehicle?

Manager Finnie replied, yes, the employee needs a city vehicle as a building inspector.

Commissioner Johnson expressed the importance of putting in place corrective action to make that employee, as well as others who may be in a similar situation, a better driver because it appears this employee is still driving a city vehicle. She directed the City Manager to provide the corrective action for an incident like this by Thursday, October 15, 2009.

During his tenure, Manager Finnie explained that there were other accidents and depending on the situation, he has moved forward aggressively. There were employee write ups and employees who were recommended for termination.

Because the accident had occurred in January 2009, Mayor Kelley asked, why did it take so long for this issue to get to the Commission?

Manager Finnie advised that he would provide the Commission with a separate memorandum in terms of Mayor Kelley's concern.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN RELOCATING TENENTS FROM 1900 ALI-BABA AVENUE IN ACCORDANCE WITH SECTION 7-73 OF THE OPA-LOCKA CODE OF ORDINANCES; FURTHER AUTHORIZING THE CITY MANAGER TO EXPEND UP TO TWENTY-SEVEN THOUSAND DOLLARS ($27,000.00) TO SETTLE PAYMENTS ASSOCIATED WITH THE RELOCATION, PAYABLE FROM ACCOUNT NO. 25-525390. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes

Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QOUTE FROM BURCORP LLC AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF THIRTY-SIX THOUSAND THREE HUNDRED FORTY-FIVE DOLLARS AND SEVENTY-SIX CENTS ($36,345.76) FOR EMERGENCY REPAIRS TO THE RECREATION BUILDING AND FACILITIES AT INGRAM PARK, PAYABLE FROM ACCOUNT NO. 72-572461. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; REPEALING AND REPLACING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" IN ITS ENTIRETY; ESTABLISHING A SCHEDULE OF WATER AND SEWER RATES FOR FISCAL YEARS 2008-2009, 2009-2010 AND 2010-2011; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOGNIZING SEPTEMBER 21, 2009 – OCTOBER 15, 2009 AS HISPANIC HERITAGE MONTH. *Sponsored by J.K.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SUPPORTING THE LIFELINE ASSISTANCE PROGRAM OF THE FLORIDA PUBLIC SERVICE COMMISSION, AND AUTHORIZING THE CITY MANAGER TO INSTITUTE A CELLULAR TELEPHONE DONATION PROGRAM FOR THE CITY OF OPA-LOCKA IN SUPPORT OF THE LIFELINE ASSISTANCE PROGRAM. *Sponsored by J.K.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE CLASS ACTION SETTLEMENT AGREEMENT IN THE MATTER OF STEVEN BARRETT V. CITY OF OPA-LOCKA PURSUANT TO THE TERMS SET FORTH IN ATTACHED EXHIBIT "A"; FURTHER AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO PLAINTIFF AND RESPECTIVE COUNSEL IN THE TOTAL AMOUNT OF TWO HUNDRED AND SEVENTY FIVE THOUSAND DOLLARS ($275,000.00), AS FULL AND FINAL SETTLEMENT OF PENDING LITIGATION AGAINST THE CITY OF OPA-LOCKA. *Sponsored by C.A.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT OF THIRTY SEVEN THOUSAND NINE HUNDRED SIXTY ONE DOLLARS AND TWELVE CENTS ($37,961.12)TO MIAMI-DADE COUNTY FOR THE PURCHASE OF TEN (10) M7100 POLICE RADIOS, PAYABLE FROM ACCOUNT NO. 21-521645. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE COMMUNITY ORIENTED POLICING SERVICES (COPS) LAW ENFORCEMENT TECHNOLOGY GRANT IN THE AMOUNT OF SEVENTY FIVE THOUSAND DOLLARS ($75,000.00) FOR THE CITY OF OPA-LOCKA POLICE DEPARTMENT. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO IMPLEMENT AN AMNESTY PROGRAM TO BRING ALL USERS OF THE CITY OF OPA-LOCKA WATER UTILITY INTO COMPLIANCE WITH STATE, COUNTY AND MUNICIPAL REGULATIONS. *Sponsored by C.M.*

The above resolutions under the consent agenda were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie briefly provided an update on the following projects: Sherbondy Park, Old Water Plant, Red Light Cameras and Weed & Seed.

Over the last week, he polled the Commission on a decision he made to allow the city's facility to be utilized for homebound services which he believes they are headed in the right direction.

Lastly, he announced that Assistant Chief Cheryl Cason was certified with the FBI for attending and completing the Law Enforcement Executive Development Program. He continued by reading a letter into the record from the State of Florida Department of Children & Families to Chief James Smith regarding the efforts of Deputy Chief Cheryl Cason for her assistance in the recovery of one of their long time missing children. He publicly recognized the Opa-locka Police Department for their assistance in this matter.

Commissioner Holmes thanked the City Manager and staff for putting together the water & sewer ordinance to give the citizens a relief in their water bills as well as the Commission for supporting it.

He continued by thanking everyone for their support during his time of bereavement for the loss of his wife. He announced the viewing and funeral service scheduled for Friday, October 16, 2009 and Saturday, October 17, 2009.

Manager Finnie informed the Commission that he ended his report prematurely.

Kathy Cole, Program Director for New Journeys Transitional Homes came forward and gave a presentation on the NJTH program which provides independent living to transition youth ages 18 – 24 that have been terminated by the foster care system or are considered homeless. The mission is to decrease the rate of homelessness for young adults by providing an immediate, safe, affordable and nurturing housing environment that promotes independence and self sufficiency. This presentation included a taping on New Journeys Transitional Homes which aired on television's CBS4

Commissioner Johnson stated that she'd asked Starex Smith, Director of Parks & Recreation to work with Ms. Cole.

Commissioner Holmes left the meeting.

Commissioner Johnson directed the City Manager to have the police department conduct community policing in the early morning for those students who walk to their bus stops and more details in the peak hours to address persons running the red lights. Additionally, the vehicles are parking in the street in residential areas.

She requested that the City Manager fast forward the bus shelters/benches and bring back a report because it's been too long.

She further stated that she sponsored an ordinance which prohibited selling of any goods on the city's right of ways and/or thoroughfares; however, on Saturday morning some citizens came to her but in addition to that a police car was present the entire time at the location. She asked for further details of this activity which the City Manager indicated that he didn't have any knowledge of.

After conducting research, Manager Finnie stated that the organization that sponsored the event was the city's Community Empowerment Team (CET) and somehow there was a communication lapse because a permit had come to him but he turned it down. The day CET was to have the event got rained out so they set up a rain date and through failure of communication, they proceeded to have their event last weekend.

Because that was the second time that team sponsored something similar, Commissioner Johnson directed the City Manager to provide them with a copy of the ordinance and hopefully that won't happen again.

She directed the City Manager to have the Human Resources Department draft the accomplishments for the City Clerk, City Attorney, and City Manager before the next commission meeting because the Commission is still going out for a search for a City Manager.

She further asked that the dead trees along NW 27th Avenue be addressed.

Vice Mayor Taylor made it clear that she would work with the City Manager on the issue with the canals.

After speaking with the City Manager about a week ago regarding the Community Garden, Commissioner Tydus stated that the City Manager indicated that he would resume working on that the following day but there has not been any activity since then. In the City Manager's explanation for work being stopped for that particular project, he mentioned it was because he had to pull Public Works from that particular project to assist in the cleaning of the alleyways and other lawn associated tasks. She asked for an update on the RFP for the lawn service because it appears to her that the Public Works Department is having to assist with the cleaning of the alleyways and being taken away from other responsibilities for instance the completion of the Community Garden, the cleaning of the canals and the cleaning of the streets. She asked for the status of the street sweeper and when that equipment is being used?

Manager Finnie said he would have staff come forward to speak about the street sweeper but he would like to address the additional issues raised. He said the last time he talked about the Community Garden, he told Commissioner Tydus Public Works would be out there last Friday and they were out there last Friday working. There was not activity this week because the city is now purchasing of various tiles and items to be put in place. At the end of the budget year, the city closes purchasing and tightens up account payable activities. The city is not in the new budget year and they are buying the materials needed to move forward. In terms of the conversation relating to the allocation of manpower to work in the city, there's no question that without the lawn contract being in place, that has presented a challenge and he attempted to supplement that challenge by hiring local vendors, reallocating people from the state program, using the Urban Rangers and from time to time other folks from Public Works. He said the city will continue picking up garbage, cleaning up and doing a lot of things. In terms of the RFP for the lawn maintenance contract, it was advertised last week and is scheduled to close on Friday, October 16, 2009.

Commissioner Tydus informed the City Manager that she is still hearing chickens on the West side of Opa-locka.

Manager Finnie stated that there is a new Code Enforcement Director and he would direct him to address the issue with the chickens. The problem with the chickens is that they migrate and usually when the city can find someone who owns chickens and they keep them in the chicken coup then the city can address the situation. However, the people

who own chicken allow them to run wild and it is very difficult to tag someone with the ownership of the chicken.

Commissioner Tydus requested that the City Manager provide her with a strategy/plan at the next regular meeting to address the chickens.

Commissioner Johnson asked for clarification on the Community Garden.

Commissioner Tydus stated that she was speaking about the Community Garden on Sharazad Boulevard and Codadad.

Commissioner Johnson asked, when did that item come before the City Commission because she knows that there was a resolution was presented but failed?

Commissioner Tydus stated that the item came before the Commission last year.

Manager Finnie stated that it was his understanding that it was approved and he moved forward allocating money in the budget.

Commissioner Johnson recalled a resolution coming to the Commission for $48,000.00 and it failed.

Commissioner Tydus stated that there is a resolution that passed and what Commissioner Tydus is making reference to was the cost.

Commissioner Johnson said she would pull the resolution.

Mayor Kelley asked for an update on Segal Park.

Hopefully, Manager Finnie stated the city would be released in November from the work on Sherbondy Park and the water site and next up is Segal Park.

Mayor Kelley directed the City Manager to make sure that Segal Park is maintained and provide an explanation as to why the lawn at Ingram Park was nicely cut but the lakefront was not.

He continued to ask for an update on his request to the City Manager to look at a service center concept for the city. Additionally, he is still receiving complaints from citizens relating to Customer Service in terms of not receiving follow up calls to keep them updated as to what is going on in the process.

He further expressed his frustration with minor items citywide that employees see but nobody addresses it. He made reference to the debris and trash at the entrance of Ingram Park that existed for almost a week but yet you have Public Works and Park staff going in and out but nobody does anything about it. The city spent all this money to make beautify Ingram Park but the entrance is terrible and everybody is waiting for somebody

else to pick it up. These types of simple minor items should be a part of the Urban Rangers and Code Enforcement daily routine while traveling through the city.

Mayor Kelley asked whether the City Manager had any idea when the county's final budget would be adopted. His purpose for asking is because the county will cut and eliminate some of their positions, etc. which would impact all cities including Opa-locka. The county put out a final version of the budget along with the implications, therefore, he would like the City Manager to review the document to make sure the stays ahead.

Manager Finnie advised that he had just received the document for the county late that afternoon.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city was paying all of its bills.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Weeks reported that the city had been in meetings and negotiations with the Police Benevolent Association (PBA) for a series of months and they're getting to a point where they need the Commission's input. She requested an executive session prior to the next commission at 6:00 p.m. She said she had for the Commission a detailed redline document in terms of the changes suggested so far that the city is in agreement with; however, there are some things that they need to work through and massage a little more. But this would be an excellent time for the Commission to be up to date on where the city is in terms of the PBA negotiations. The negotiation team includes Chief Smith, Sharlene Boyd, Dr. Ezekiel Orji and the legal staff.

After further discussion, the consensus of the Commission was to have the attorney/client session on Wednesday, October 28, 2009 at 6:00 p.m. and for the City Attorney to provide the document in advance. The City Attorney agreed to provide the document to the Commission on Tuesday, October 20, 2009 and to meet with them individually, if they like, to go through the document.

Attorney Weeks read the following notice into the record: City of Opa-locka, Florida, Attorney-Client Session: Pursuant to Section 286.011(8), Florida Statutes, an attorney-client session would be held at a special meeting of the Opa-locka City Commission on Wednesday, October 28, 2009 at 6:00 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, to update the City Commission on the status of negotiations with the Police Benevolent Association (PBA) and determine if the City is proceeding in the desired direction. In attendance will be Mayor Joseph L. Kelley, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson, Commissioner Rose Tydus, Bryan K. Finnie, Interim City Manager, Burnadette

Norris-Weeks, City Attorney, Valerie Kiffon-Lewis, Assistant City Attorney and Court Reporting Services. The attorney-client session will begin at 6:00 p.m. and end at approximately 6:50 p.m. This attorney-client session shall be closed to the general public. Upon conclusion of the attorney-client session, the special City Commission meeting shall be reopened.

She continued by saying that this notice would be provided to the City Clerk's Office on the following day.

Commissioner Johnson directed the City Attorney to bring back a resolution or ordinance banning texting while driving.

Attorney Weeks stated that the Mayor had asked her to prepare a resolution for the next commission meeting to prohibit receiving or sending text messages while driving.

Commissioner Johnson noticed in the packet that there were several meetings scheduled for Planning Council and she had asked the City Manager to rescind all agreements. She requested that the City Attorney bring back a detailed report on all items this firm has worked on for the Planning Council.

She continued by asking the City Manager if all contracts were rescinded?

Manager Finnie advised that he is going to the process now but there is no way he can rescind all of the contracts.

Commissioner Johnson informed the City Manager that she didn't want him to decide which contracts to cease. Although the City Manager didn't enter into all of them, she was lead to believe that they were rescinded; however, since all of the contracts were not ceased, she asked for detailed report as to those that are still opened. The City Manager cannot enter into a contract unless he brings it to the Commission for approval.

She continued by saying that the firm she was speaking about was not brought in to provide all of those services. Additionally, she previously mentioned that she didn't want anyone having advanced information as what she was told regarding this firm that was brought in.

She further stated that the resolution regarding Youth Co-op which was passed by the Commission, she noticed a contract that she never seen; therefore, she is assuming the City Attorney came up with the contract.

Manager Finnie advised that the document is a service agreement and not a contract.

Attorney Weeks stated that she did not draft the contract.

As it related to legal sufficiency, Commissioner Johnson suggested that the City Manager nor his staff draft anything that will be bound by the city unless the City Attorney has

reviewed it because the knowledge skills and competency of a legal opinion does not lie with the City Manager and his staff. She directed the City Manager to make sure the City Attorney receives her evaluation because a search will go out in 60 days.

18. CITY CLERK'S REPORT:

Clerk Irby advised the Commission that the Regular Commission Meeting scheduled for November 11, 2009 falls on a holiday, Veteran's Day.

After brief discussion, it was the consensus of the Commission to cancel the Regular Commission Meeting of November 11, 2009 reserving the right for the City Manager to call for a special commission meeting should there be any items requiring immediate attention.

Clerk Irby provided an update on the Census 2010 and stated that the city had a new liaison who is working out well. After learning that the city would no longer need to hold a special election, she requested to utilize the $5,000.00 originally allocated for that special election to prepare the city for the Census 2010 in terms of getting promotional items printed, going door to door, having banners put up throughout the city, mail-outs, etc.

Commissioner Johnson gave direction that this item is brought back in the form of a resolution to have a paper trail.

Clerk Irby added that the city would have to change the qualifying period for the City of Opa-locka in 2012.

Vice Mayor Taylor directed the City Clerk to provide a written report to the Commission on the Census 2010.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that she provided the Department of Human Services with a letter of support relating to WI FI; attended the Florida Memorial University Gala; in the process of conducting training for Miami-Gardens and Opa-locka Crossing Guards at no cost to the city; appointed by Commissioner Jordan to serve on the Community Action Agency; attended District 1 Hispanic Heritage Celebration; attended several cities workshops; met with Mayor Shirley Gibson of Miami Gardens on the education compact; in the process of working with Commissioner Jordan's office to provide technical support back to the City Manager's Office; and the commencement of her television program "Straight Talk".

Vice Mayor Taylor expressed sympathy to Commissioner Holmes and family for the passing of his wife.

Note: This portion of the minutes is transcribed in verbatim.

Vice Mayor Taylor: *I have been serving in public service here in the City of Opa-locka since 1996 and never have I asked anyone what anyone had said in a meeting, to anyone, or have tried to find out anything about whatever my colleagues have said in a meeting. I had a meeting on last week with the Manager and one of his staff...two of his staff members. Now there's no federal law, no state law, county or local law here in the City of Opa-locka that prevents me from talking to anyone, asking them, inquiring or hearing what they have to say because staff members are in the streets and they hear what our people are complaining about and of course if I ask them, they will bring it to me. Now I've never asked anyone and everybody here have meetings but I have my first time to say who said what in that meeting and who met. Now that was done to me and I didn't appreciate it because if anybody wants to know anything they can come and ask me and I'm woman enough to tell them what I have said and I have no problems talking to staff and I invite them to talk to me. The meeting was held in the Manager's presence with his staff, I wanted to hear what they and I wanted them to give me suggestions on how we can make this city even better. I am not the enemy here and I don't know why people are tracking my movements, I don't appreciate it and it should stop. We have enough on our plate to do then to find out what the Vice Mayor is up to and what she is doing. Our people are drowning, our citizens are drowning in a sea of water & sewer cost. Even though we do what we can, they're still drowning, they're losing their homes from foreclosure, property taxes are increasing, and you're keeping up with my movement. Those people that have folk that's spying on whoever and especially me, why don't you send them to Tallahassee and ask for some rehab money so we can rehab City Hall. This place is historical and in some areas in rooms it's used as storage. I was looking at some of the advertisement that was in front of the post office there and here at City Hall and they were advertising the upcoming events. One of the posters said that the upcoming event was going to be at Old City Hall. This is not Old City Hall, this is thee City Hall. This place is deteriorating by the day and no one seems to care which is why Mother Skiles, if you recall in the minutes, came and made her position clear which is why she comes to the meetings every now and then so we don't sneak City Hall out from here into Town Center One. Which brings me to another point, we have enough on our plate to do either purchase Town Center or the money that we've used in it, we could have built our own municipal complex but still you're following the Vice Mayor around. Forget me, I'm not the enemy here, the enemy is what we have to do and because we're nitpicking and following the Vice Mayor around shows me number one, we have no goal, no mission and no vision. And even the Bible says that without vision the people parish and I see the resolutions that we pass up here is no general resolution, our downtown still is not attractive to anyone. We only have one good restaurant in this whole city and you're following me around. I'm saying this, with him, the Bible also says to write the vision and make it plain. Now what has happened is, and a lot of folks saying Mrs. Taylor ain't saying nothing; Mrs. Taylor trying to find out which way the direction is going and to learn the layout of the land. The manager, sometimes I feel sorry for you Mr. Manager and I going to tell you why because you should have a book just like this where five people have put in what they want to see this city is about and have benchmarks by which we can track what you're doing. You don't have anything written, there is no vision from*

this Commission written but you're busy following me around, that needs to stop. We need to get on the bandwagon and let us do something for our citizens that they can visibly see. They are suffering, our people are suffering, they have no where...we have a large homeless problem here and I'm glad Ms. Cole had something to say. Of course she's doing transition but we have older people on the street. When we went over to the water plant and you know this to be true, there were people living, not just men or women, there were children in that water plant, they were homeless. We asked them to leave, they would leave and when we leave they would come back. And all of our homes that are boarded up, they come back in at night. We have a lot on our plate, following Mrs. Taylor around ain't it, that won't get it. It's writing a vision, giving it to him and sometimes when...that's why he has no direction he just does things sometimes on his own. And this is no criticism to you but you do, you do what you think we that we need done and then when you do it right hardly anybody say anything but when you do it wrong, every two weeks you're being fired. You can't help it because you have no plan. So I'm saying we have created a kingdom of spies and snitches in this city. I know it and I just got experienced with it. There's no law saying that I cannot speak to anyone and I will, I will. If you want to know anything that the Vice Mayor is going and I am for a plan, I can't monitor you without a plan, I can't track you without a plan, I cannot give a benchmark...I cannot see your benchmarks without giving you a plan and it's not yours it's ours that we should give to you. So my...my...I'm going to draw my line in the sand...draw my line in the sand. I'm going to move in this city, I'm going to move around in this city and if anybody want to know what I'm doing come and ask me. I'm grown enough to say what I have to say and I would meet with whoever I have to meet with within the bounds of the law, I would do that. So now for you Mr. Manager, for you and any of...let me tell you about that meeting...what came out of that meeting was a big lie, now that's the truth. What came out of that meeting was something said that was never said and was reacted upon. Phone calls kept going, nobody came and asked the Vice Mayor, if you were concerned about it so much and was that nosey...come and sa\y, Vice Mayor what was going on and I would have told you. My meetings are not secret which is more than I can say for a lot of meetings in this city so I'm drawing the line in the sand, I'm going to meet with people within the bounds of the law. I'm going to talk to you, I'm going to ask you your opinion, I'm going to ask you what's going on. You're in the street because I want to make this city better for the people, for our people. We have so much going on and so much should be addressed that's not being addressed because we don't have a written vision. Your folk, if I meet with you or any of your people, this is what you tell them and I'm telling you to tell them, if they want to know something, tell them to go and ask the Vice Mayor and I'll let them know...maybe...maybe not, what I'm doing but I'm going to move in this city. So now get off me, we have too much to do; get off me, let's get on with making life better and easier for the citizens of Opa-locka. We have people that need out help, they're begging, they come to this meeting...a woman said she don't want to use water because of the water bill, don't want to drink water, who can say that. Twelve percent in the Census of 2000...in the Census of 2000 that we did, twelve percent of our population in 2000 was living below the poverty level, not at it, below the poverty level. Now here we are 2010 and I know that that figure has gone up. So we have a lot on our plate, we have a lot to do, following the Vice Mayor ain't it. Thank you, Mr. Mayor that's my report for this time.

Note: This concludes the verbatim portion of these minutes.

Mayor Kelley reported his attendance at the Miami-Dade League of Cities Board Meeting and the scheduled meeting with the pastors at the Opa-locka Police Department to encourage them to assist them in making their properties secure and safe. He thanked the City Manager for the relocation of citizens who were displaced.

He suggested that the City Manager be mindful of the fact that everything the city does must be done positively to help the citizens. He commended the Opa-locka Police Department for the recent Chief's Night Out and stated that he would continue to follow and improve the city's Crime Watch Organizations in hopes that the crime watch initiative would get citizens involved.

Although he keeps hearing about vision and plan, he stated that in the beginning of the year the Commission passed goals & objectives which should be measured from the City Manager, City Attorney and City Clerk and he would assume the City Manager is following those goals & objectives laid out for accomplishment; therefore, there is a plan in place and like anything else the plan could be improved upon. The city is not wondering around aimlessly because there is a plan in which they are trying to accomplish but every little bit helps and everybody has a role to play. In the final analysis, everybody is in this together. Where there's unity, there's strength and they need to work towards that and do everything possible to make the quality of life better in the "great" City of Opa-locka.

Commissioner Tydus reported that she met with the Mayor of Miami Lakes and they are working on projects that will bring about collaboration between the two communities.

She announced the 70's Costume Ball on Saturday, October 31, 2009 at Historic City Hall (west lawn) from 6:00 p.m. to 10:00 p.m.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 9:55 p.m.

MAYOR

ATTEST:

CITY CLERK